BOOTH SHEET · EP. 2 MIRANDA

VOICE-OVER · 22 LINES · 1,018 WORDS · ABOUT 7 MINUTES READ · PLAN 30–45 MINUTES

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1. **Mic:** the same one as intro take 2. In QuickTime: File → New Audio Recording, click the arrow next to the record button, pick that mic and set Quality to Maximum.
2. **Room tone:** before the first line, record 5 seconds of silence.
3. **Slate:** one long recording is fine. Before each line, say its number as printed (“four,” “nine A”), wait a beat, then read.
4. **Flubs:** stop, pause, and start that *sentence* again. Don’t restart the whole line; the mistakes get cut.
5. **Another try:** say the ID again plus “take two.” The last take is used unless you say otherwise.
6. **Pace:** your own, a little slower than talking. Breathe at the end of each line on this sheet; on long ones, at any comma.
7. **Breaks:** stop whenever you like. Several files across several sessions are fine; tick the boxes as you go.

S01

COLD OPEN · ~20 S AT TEMP PACE

SAY: “one”

You have the right to remain silent.

You’ve heard it on every cop show for fifty years.

Here’s what you haven’t heard.

The man those words are named after was convicted anyway.

Twice.

And when he was killed in a bar fight in 1976, the man accused of killing him was never tried.

The reason wasn’t Miranda.

Cold open. Let “Twice.” land on its own. A beat before “The reason wasn’t Miranda.”

S04

ACT 1: THE ROOM · ~14 S AT TEMP PACE

SAY: “four”

March 1963.

Phoenix.

An eighteen-year-old woman finishes her shift at a movie theater, takes the bus home, and is abducted and raped on the way.

We won’t show her, and we won’t use her name.

Even and plain. No drama on this one.

S05

ACT 1: THE ROOM · ~10 S AT TEMP PACE

SAY: “five”

About a week later, a relative spots a car that matches her description and gets part of the plate.

It leads police to a man in his early twenties named Ernesto Miranda.

S06

ACT 1: THE ROOM · ~13 S AT TEMP PACE

SAY: “six”

March 13th.

Detectives Carroll Cooley and Wilfred Young bring him in, put him in a lineup, then take him into Interrogation Room Number 2.

About two hours later, they walk out with a signed confession.

S07

ACT 1: THE ROOM · ~7 S AT TEMP PACE

SAY: “seven”

Nobody hit him.

Nobody threatened him.

And nobody told him he could stay silent, or ask for a lawyer.

Three short beats, slower than the rest.

S08

ACT 1: THE ROOM · ~13 S AT TEMP PACE

SAY: “eight”

Here’s the detail I love as a lawyer.

He wrote it on a form, and at the top, already typed, was a line certifying the statement was made ‘with full knowledge of my legal rights.’

Nobody had told him what those rights were.

The quote is the form’s own words. Read it as a quote.

S09A

ACT 1: THE ROOM · ~30 S AT TEMP PACE

SAY: “nine A”

That test came out of a 1936 case, Brown v. Mississippi.

A deputy sheriff and others whipped three Black men until they confessed to a murder, and the Supreme Court threw those confessions out.

After that, the question was whether a confession was voluntary, judged case by case: how long, how old, how educated, whether anyone made threats.

No beating, no threats, two hours.

By that test, Miranda’s confession was fine.

S10

ACT 2: CONVICTED · ~11 S AT TEMP PACE

SAY: “ten”

His court-appointed lawyer, Alvin Moore, objected to the confession.

The judge overruled him.

Convicted.

Twenty to thirty years.

The Arizona Supreme Court affirmed.

S11A

ACT 2: CONVICTED · ~32 S AT TEMP PACE

SAY: “eleven A”

They had an opening.

Five days after Miranda signed that confession, the Supreme Court decided Gideon v. Wainwright: if you’re charged with a felony and can’t afford a lawyer, the state has to give you one.

A year later came Escobedo v. Illinois.

Police had refused to let a suspect see the lawyer he was asking for, and the Court threw out his confession.

That left an obvious question.

If the right to a lawyer matters at trial, and matters when you ask for one at the station, what about the person who doesn’t know to ask?

Long one. Start a fresh take at any sentence if you need to.

Say it: Gideon: GID-ee-un · Escobedo: ess-koh-BAY-doh

S13

ACT 3: THE DECISION · ~9 S AT TEMP PACE

SAY: “thirteen”

The Supreme Court bundled Miranda with three other confession cases.

On June 13, 1966, it ruled five to four.

S14A

ACT 3: THE DECISION · ~24 S AT TEMP PACE

SAY: “fourteen A”

To prove it, he did something unusual.

He quoted the police training manuals.

Question him alone, on your ground, not his.

Treat his guilt as already settled.

Offer him an excuse that makes confessing easier.

Play a friendly detective against a hostile one.

The opinion called it a setting created for no purpose other than to subjugate the individual to the will of his examiner.

The last sentence is the Court’s language. Slow down for it.

Say it: subjugate: SUB-juh-gate

S15

ACT 3: THE DECISION · ~12 S AT TEMP PACE

SAY: “fifteen”

You can stay silent.

What you say can be used against you.

You can have a lawyer.

And if you can’t afford one, you’ll get one.

Skip the warnings, and what he says can’t be used to prove the case.

S16

ACT 3: THE DECISION · ~13 S AT TEMP PACE

SAY: “sixteen”

The four dissenters said it would put guilty men back on the street.

Justice White wrote that ‘in some unknown number of cases the Court’s rule will return a killer, a rapist or other criminal to the streets.’

The quote is Justice White’s. Read it as a quote.

S18

ACT 4: CONVICTED AGAIN · ~16 S AT TEMP PACE

SAY: “eighteen”

Arizona retried him in 1967, this time without the confession.

The prosecution called his former common-law wife.

She testified that during a jail visit he told her what he’d done.

Convicted again.

Twenty to thirty years.

S21

ACT 5: THE CARDS · ~9 S AT TEMP PACE

SAY: “twenty-one”

He was paroled in 1972.

Back in Phoenix, he signed the cards police carry to read the warnings, and sold them for a dollar or two.

S22

ACT 5: THE CARDS · ~23 S AT TEMP PACE

SAY: “twenty-two”

January 31, 1976.

A fight in a Phoenix bar.

Miranda is stabbed and dies.

Police arrest a man they say handed the killer the knife.

He’s read his rights.

Prosecutors decline to charge him.

The man accused of the stabbing was questioned and let go.

By the time he was charged, he was gone.

He was never tried.

Flat and matter-of-fact. The music cuts out right after “never tried,” so stop clean.

S24

ACT 6: IS IT STILL STANDING? · ~36 S AT TEMP PACE

SAY: “twenty-four”

Miranda has been under attack since the day it came down.

In 1968, Congress passed a law to get around it: a confession was admissible as long as it was voluntary.

Then the Court itself started trimming.

In 1971, it said a statement taken without the warnings can still be used against you if you take the stand and tell a different story.

In 1984, it carved out a public safety exception: if an officer asks where the gun is before reading the warnings, the answer comes in.

That opinion was written by William Rehnquist.

Long one. Start a fresh take at any sentence if you need to.

Say it: Rehnquist: REN-kwist

S24A

ACT 6: IS IT STILL STANDING? · ~21 S AT TEMP PACE

SAY: “twenty-four A”

By 2000 he was Chief Justice, and the 1968 law finally reached the Court in Dickerson.

Plenty of people expected him to finish Miranda off.

Instead he wrote the opinion saving it, seven to two.

Miranda, he wrote, ‘has become embedded in routine police practice to the point where the warnings have become part of our national culture.’

The quote is Rehnquist’s. Read it as a quote.

S25A

ACT 6: IS IT STILL STANDING? · ~25 S AT TEMP PACE

SAY: “twenty-five A”

So what does it cost?

Researchers have fought over that number for decades.

In 1996, Paul Cassell estimated that Miranda costs prosecutors almost four percent of all criminal cases.

Stephen Schulhofer went through the same studies and got about one percent.

What the studies agree on is that most suspects, about four in five, waive their rights and talk anyway.

Say it: Cassell, Schulhofer: say them the way each professor does (worth a quick check)

S27

THE HOLDING · ~4 S AT TEMP PACE

SAY: “twenty-seven”

So what does Miranda actually stand for?

Three things.

Turn the page. This is the payoff.

S28

THE HOLDING · ~15 S AT TEMP PACE

SAY: “twenty-eight”

One: the warning isn’t required at arrest.

It’s required before custodial interrogation.

Two: the remedy is losing the statement, not losing the case.

Three: the right is real, but you have to use it.

Out loud.

Say it: custodial: kuh-STOH-dee-ul

S28A

THE HOLDING · ~24 S AT TEMP PACE

SAY: “twenty-eight A”

If you take one practical thing from this, the words matter.

In 1994, the Court held that ‘Maybe I should talk to a lawyer’ wasn’t clear enough to stop the questioning.

So be clear.

‘I’m going to remain silent.

I want a lawyer.’

Then stop talking.

That’s general information, not advice about your case.

If you’re ever in that room, that’s exactly when you call one.

Straight to the viewer. Don’t rush the “general information” line.

END OF VOICE-OVER · THE ON-CAMERA PIECES ARE ON THE RECORDING SCRIPT